



OFFICE NATIONAL DES AEROPORTS

**International Call for Tenders for the Management of CIP
Lounges and CIP Meet and Assist services within Moroccan
Airports**

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Single batch

Requirements Specification Document

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ARTICLE 1 : PRESENTATION OF CIP SERVICES IN THE AIRPORTS

Meet and assist services of CIP (Commercially Important Passengers) and management of CIP lounges of Office National Des Aéroports (ONDA), hereafter named « CIP services », are currently provided by one external operator in 9 airports: Casablanca (CMN), Marrakech (RAK), Agadir (AGA), Rabat (RBA), Fez (FEZ), Tangiers (TNG), Oujda (OUD), Laayoune (EUN) and Dakhla (VIL).

The Holder shall manage CIP services including lounges without any exclusivity agreement.

As a matter of fact, the national flag carrier Royal Air Maroc (RAM) has its own lounges in the departure areas terminals in Casablanca and Marrakech. RAM commercializes the access to these lounges as well as the use of Fast Track in Terminal 1 of the airport Mohammed V of Casablanca to its own passengers and also to partner airline companies' passengers. The CIP services offered by RAM are intended to be provided in the new terminal of Rabat and could be extended to other airports according to the future infrastructure extension programme and the addition of new lounges. Also, the airline Emirates shall have its own lounge in Terminal 2 of the airport Mohammed V of Casablanca for its own and partner companies' passengers.

Moreover, ONDA is undertaking a development program to extend the infrastructure of airports of Agadir, Tangiers and Marrakech over the period 2024-2028. And the new Terminal of Rabat shall open by end of December 2024.

In order to make sure that CIP services are standardized within all the airports, the present tender is designed to select **a single operator for all 9 airports: Casablanca, Marrakech, Agadir, Rabat, Fez, Tangiers, Oujda, Laayoune and Dakhla**. The operator to be chosen has to justify its experience, financial capacities, and human resources in CIP management: Lounges and meet and assist services.

The present tender concerns only the **commercial passengers** of the 9 mentioned airports: access to CIP lounges and meet and assist services.

In addition of access to lounges, the Holder shall provide CIP the Fast-Track facilities installed by ONDA in the some of these airports.

It is important to mention that CIP services cannot be offered during border control procedures.

The Holder has to develop a uniform concept with high international standards of quality of service, in all CIP lounges of the airports mentioned above.

WARNING:

The present document does not include all necessary information a competitor may consider crucial to its decision-making process to participate to the tender. Therefore, tenderers are invited to conduct their own independent diligence to be able to draw the perspectives and to make sure of the profitability of their project.

Completion times of current infrastructure extension program are given for information and may change following the progress of the program.

This document is set to the exclusive attention of the potential tenderers or their advisors. It can be consulted on ONDA website: www.onda.ma. The present Requirements Specification Document complies with Dahir of November 30th, 1918 related to the temporary occupations of public domain. Therefore, the Holder cannot claim any commercial property. The Dahir of Choual 2nd, 1374 (May 24th, 1955), related to leases of buildings or premises rented for industrial or artisanal commercial use, is not applied to the present convention. The Dahir n°1-00-175 of Moharrem 28th, 1421 (May 3rd, 2000) promulgating the law n° 15-97 related to public debt recovery code applies to the present convention.

The present Requirements Specification Document describes obligations, rights and conditions that shall rule the execution of CIP services. The Bid Rules Document defines the minimal technical requirements regarding qualifications, professional experience, staff and organization, financial capacity needed to participate in the present tender. It describes also the process of the selection and the conditions of attribution of the convention.

NB: ONDA has the right to change or cancel at any time the present tender

ARTICLE 2 : NATURE AND PERIMETER OF THE CONVENTION

2.1 Nature of the convention

ONDA authorizes the winner of the present tender, named « Holder » to ensure the activities described in paragraph 2.4 below. The Holder is authorized to occupy et manage temporarily the CIP lounges that ONDA provides, located in customs bonded areas, departure Terminals of the airports listed hereafter.

At the request of the Holder, premises for administrative use and areas dedicated to assist CIP, located in customs free zones, can be assigned according of their availability. Both parties have to sign an Acceptance Report mentioning the surface to be occupied by the Holder. The occupation shall be invoiced by ONDA according the existing rates in each airport.

2.2 Perimeter of the Convention

The present call for tenders shall lead to a convention for CIP services in the airports listed below:

- Casablanca, Terminal 1 and 2,
- Marrakech,
- Agadir,
- Rabat,
- Tanger,
- Fès,
- Oujda,
- Laayoune,
- Dakhla.

If the Holder withdraws from one airport from this list, the present convention shall be terminated following article 29 hereafter.

2.3 CIP Lounges

By the present, ONDA shall made available to the Holder, in compliance with the temporary occupation regime, the following lounges:

Airports		Number of CIP Lounges International Departure Area	Surface (m²)
Casablanca	T1	2	350
			280
	T2	1	205
Marrakech		1	680
Rabat New Terminal		1	400
Tangiers		1	125
Agadir		1	180
Fez		1	92
Oujda		1	181
Laayoune		1	38
Dakhla		1	48

2.4 Meet and assist services:

CIP meet and assist:

Mandatory services:

- Meet and assist CIP pax at the departure and arrival using Fast-Track

Airports		Meet and Assist/ Departure Fast Track	Meet and Assist/ Arrival Fast Track
Casablanca	T1	Yes	Yes
	T2	Yes	Yes
Marrakech		Yes	Yes
Rabat New Terminal		Yes	Yes
Tangiers		Yes	Yes
Agadir		Yes	Yes
Fez		Yes	Yes
Oujda		No	No
Laayoune		No	No
Dakhla		No	No

- CIP meet, assist and transport from terminal to the aircraft and inversely in adapted car
- CIP assistance for luggage delivery
- CIP escort to Terminal exit.

Optional Services:

- Meet CIP at the entry of the Terminal at a specific desk designed by the Holder
- Collect luggage at CIP home and return them back at the airport

The Holder is free to offer any other CIP service after ONDA approval according operations' procedures in each airport.

WARNING

- **The Holder cannot assist CIP during border control procedures (police and customs)**

CIP Lounges management:

- Manage CIP lounges by implementing passengers' processing procedures according to international standards
- Assign qualified staff in charge of meeting and assisting CIP according to international standards
- Ensure cleaning and maintenance of the lounges and their equipments in perfect functioning conditions
- Ensure diversified catering according to international standards and following CIP expectations in a smooth way
- Install real-time flight information display screens
- Ensure the availability of all necessary material resources in perfect conditions
- Ensure high speed WIFI with no interruption
- Report frequently the activity of CIP lounges to ONDA services with no delay.

CIP commercial services development:

- Implement a commercial policy to prospect customers and to develop clients' portfolio
- Adopt a marketing approach to analyse frequently CIP needs and implement appropriate actions plan accordingly

CIP lounges equipments and services:

The Holder shall develop within CIP lounges, at least, the following services:

- Booking system of the commercial services that enables CIP to choose adequate services according their needs, in Moroccan airports aimed by the present convention
- Implement E-gates at the entry of CIP lounges to control access and determine the real number of customers using lounges
- Inform clearly CIP of the price of each service
- Loyalty program
- Diversified foods and beverages in CIP lounges
- IT equipments with free Internet access and high speed WIFI, satellite TVs in a sufficient quantity

ARTICLE 3 : CONVENTION

The process of selection related to the present call for tenders shall lead to a convention to be signed by the Holder and ONDA. The convention is made of the present Requirements Specification Document, the Commercial Offer and the Financial offers as submitted by the Holder. This document is named hereafter « Convention ». The convention shall be signed in French and English and in case of discrepancies, the French version shall prevail.

ARTICLE 4 : DURATION OF THE CONVENTION

The convention shall come into force from the date of signature of the General Manager of ONDA. Operations shall last **ten (10) years** starting from Jan 1st, 2025 unless the convention is terminated before the end of its duration following the conditions stated in **article 29**.

The Holder shall start operations according to chart below:

Airports	Starting date of CIP Lounges operation	Starting date of Fast Track
Rabat new Terminal	Jan 1st, 2025	Jan 1st, 2025
Other airports (current lounges)	Apr 1st, 2025	Jan 1st, 2025

ARTICLE 5 : CIP LOUNGES CONSTRUCTION WORKS

5.1 Nature of works

The Holder shall ensure at his own expenses and on his own responsibility, the decoration, the furnishing and the equipments instalment in CIP lounges of the airports mentioned above.

The Holder shall install and equip CIP lounges with furniture and high-quality IT equipments, in new condition and with a sufficient quantity according the number of CIP.

Regarding CIP lounge of the new terminal of Rabat, the Holder shall finish all necessary works (decoration, furnishing and equipment instalment) so that operations can start on **Jan 1st, 2025**.

ONDA is currently undertaking an extension program of its airports, particularly Agadir, Marrakech, Tangiers and Casablanca. The first three airports' extension program are expected to end by **2028**. Casablanca program is currently on study. The Holder shall continue the operations within the current lounges within these airports until the start of extension works reach these lounges.

If the extension works reach CIP lounges managed by the Holder, ONDA shall give new dedicated spaces to the Holder, with an equivalent surface to the current lounges in the concerned airports. The Holder shall be in charge of decoration, furnishing and equipments of these new spaces.

Therefore, for these airports concerned by an extension program, the Holder shall, after the restitution of current CIP lounges, continue meet and assist operations using Fast Track circuits when it is possible.

For new lounges to be furnished, the Holder shall comply with the following instructions:

- ✓ **Signs:**
 - To be placed by the Holder once ONDA approves the design and specifications.
- ✓ **Flooring:**
 - To be placed by the Holder once ONDA approves the design and specifications.
- ✓ **Partitions:**
 - ✓ To be placed by the Holder once ONDA approves the design and specifications.
- ✓ **IT and electrical networks:**
 - ONDA shall lead the IT and electrical network cables until the technical room of CIP Lounge
 - IT and electrical cables until the lounge shall be at the expense of ONDA,
 - The connection with operator network shall be at the expense of the Holder,
 - All network distribution within the lounge shall be at the expense of the Holder.
- ✓ **Air conditioning:**
 - Air conditioning within the lounge shall be at the expense of the Holder. The system shall be approved by ONDA.
- ✓ **Sanitaries.**
 - Sanitaries arrangements shall be at the expense of the Holder.

Completion deadlines to be respected

Airports	Maximum time for works before the starting date of CIP lounges operation	Starting date of CIP Lounges operation
Rabat new Terminal	6 months	Jan 1st, 2025
Other airports (current lounges)	3 months	Apr 1st, 2025
Airports meant to be extended (New lounges)	6 months	TBD

The Holder shall provide a detailed planning for each current lounge of the present Requirements Specification Document (except for Rabat) not exceeding **3 months** starting from the date of handover of the lounges.

For new lounges of the airports concerned by an extension program including Rabat, the Holder shall provide a detailed planning and be committed to its execution during a period that not exceeds **6 months** starting from the date of handover of the premises.

On another hand, if the Holder does not comply with deadlines above to achieve arrangement and furniture of lounges, for a reason ascribable only to the Holder, the latter shall be invoiced a penalty of 1 per 1000 of the AGM of the year when the delay is identified.

ARTICLE 6 : HUMAN AND MATERIAL MEANS

6.1 HUMAN MEANS

The Holder shall hire a qualified staff in a sufficient number in order to satisfy CIP expectations. The staff shall provide a quality of service following international standards by speaking at least the following languages: **Arabic, French and English**. Additional languages may be suggested.

The Holder shall ensure an adequate training to its staff regarding meet and assist techniques.

Central Manager's

The Holder shall appoint a central manager in charge of the management of all CIP lounges. The manager shall be the unique focal contact of ONDA and the public authorities. The Central Manager is in charge of :

- Ensuring the good management and good operations of CIP lounges mentioned in the present convention
- Implementing the management procedures of all CIP lounges
- Managing all direct people in charge in each lounge
- Controlling all offered services concerned by the present convention
- Producing operational reportings to ONDA of all CIP lounges
- Replying to customers claims
- Ensuring implementation of actions plan regarding the improvement of quality of service
- Providing ONDA any required information

Local managers

The Holder shall appoint in each airport one local manager. This manager shall be the focal contact of airports' managers. In order to ensure the fluidity of Fast Track service, the local managers shall coordinate operations along with airports' managers, prepare assistance programs and allocate needed resources.

ONDA has the right to refuse the services of any person employed by the Holder, or asking for his/her replacement in case of inappropriate dress, misbehaviour, impoliteness towards CIP customers or ONDA staff.

6.2 MATERIAL MEANS

6.2.1 Furniture, IT equipments

The Holder shall install and equip CIP lounges with furniture and high-quality IT equipments, in new condition and with a sufficient quantity according the number of CIP.

The Holder shall equip lounges with:

- E-gates at the entry of each lounge,
- IT materials
- Internet access and High Speed WIFI

- Satellite TVs
- Electronic payment solutions
- Invoice machine for CIP at request

The Holder shall equip all CIP lounges with an access control system enabling an automatic counting of customers. The Holder shall as well install an IT solution to count passengers using Fast Tracks at the departure and the arrival

6.2.2 Vehicles:

The Holder shall make available a sufficient number of adapted vehicles in new conditions (Sedan or minivans) in order to transport CIP. The vehicles shall be equipped with flashing lights or any similar system.

The Holder shall comply with all safety and security measures inside airports. The Holder shall be the lone responsible for any infringement and related consequences. The responsibility of ONDA in that case is entirely excluded.

For safety and security reasons, and regarding their particular conditions of use, these vehicles cannot have access to customs free zone only for maintenance purposes. The vehicles shall have badges provided by ONDA to enable them to move airside.

The Holder shall contract, at his expense during all the duration of the Convention, all required insurance to cover all risks that may occur during the transport of CIP.

6.2.3 Meet and assist tools:

The Holder shall equip his meet and assist staff with IT tools such as tablets to display the names of CIPs

ARTICLE 7 : OPERATIONS CONDITIONS

7.1. Meet and assist staff have to

- Master CIP meet and assist techniques
- Have an accurate sense of servicing, contact and relationship
- Dress in an appropriate way with uniforms
- Be organized, dynamic, caring, polite and smiling
- Have good speech
- Speak local and foreign languages: Arabic, French and English
- Manage phone calls in a good manner
- Master information and communication techniques while dealing with customers
- Be aware of air transport sector regulations

7.2. Staff discretion

- CIP operations has to be managed with professionalism and discretion
- It is strictly forbidden to disclose any information or document to any CIP or third party
- It is strictly forbidden to behave in a way to harm the image of ONDA
- It is not allowed to speak to CIP only within the professional framework of meet and assist

7.3. Service continuity

The Holder shall set up a service continuity plan. Therefore, the Holder shall ensure CIP services, according the flight plan of each airport, even during public holidays, own personnel strike or any other event that may disturb normal operations. The Holder shall also comply with the opening and closing times of each airport.

7.4. Work legislation and temporary work compliance

The Holder shall comply with Moroccan work legislation, in particular in terms of minimum wages, social security, insurance and also all legislation related to temporary work.

7.5. Video surveillance et lounges access control

For safety and security purposes, the Holder shall implement video surveillance cameras within CIP lounges. ONDA has the right to ask at any time to request recordings without specifying any motivation.

The lounges access control system to be implemented by the Holder (article 6) shall enable a minimum identification of passengers, counting, historical records of customers, for each airport and any period of time.

The Holder shall keep all records available including passengers' records at least two months.

7.6. Catering

The Holder shall pay a particular attention to the quality of catering offered in Lounges. The Holder shall implement a strict food hygiene/safety policy and shall deploy all necessary human and material means to ensure the best service and to prevent any risk related to this aspect.

The Holder is the lone liable in case of negligence or incident that may occur.

The Holder shall carry out at least two hygiene controls a year in each CIP lounge. These controls shall be done by laboratories approved by Moroccan authorities. The Holder shall implement any necessary action plan if needed. The results of these controls and the related action plans shall be transmitted to airports' managers.

7.7. Unauthorized activities

The Holder is not allowed to handle business jet or private jet passengers in the airports in which a dedicated lounge exists.

7.8. Vehicle circulation

The Holder shall strictly comply with regulation regarding vehicles circulation and parking in airside. The Holder shall also comply with legislation regarding the safety of the buildings and public domain as defined by ONDA.

It is highly important to mention that any driver within apron areas shall possess a driving licence delivered by ONDA. This licence shall be granted after a training session by ONDA at the Holder expense.

The Holder shall be responsible for drivers' training and skills evaluation. After an interruption of three months or more, driver's skills shall be systematically evaluated

7.9 Complementary training of the Holder's staff

A complementary training regarding safety and security to all Holder's staff is required. This training shall be carried out by ONDA at the Holder expense.

Besides driving licence training, The Holder shall carry out in his training plan the following courses:

- General knowledge of the airport
- Safety rules in aprons
- Rules regarding aircraft approach by a vehicle
- Environment protection

7.10 Breach of Safety and Security Rules

Any breach of safety and security rules shall be treated according to the existing legislation and regulation.

ARTICLE 8 : SUBCONTRACTING

The Holder is allowed to use subcontractors to ensure services related to the present authorisation. However, the Holder cannot subcontract the main activities, namely, the meet and assist and lounge management.

The Holder shall be the only responsible towards ONDA and the CIP for any action of the subcontractors. The Holder shall guarantee that its subcontractors fulfil all conditions required in the present Requirements Specification Document.

The management of service quality to be implemented by the Holder shall be applicable also to the subcontractors.

Particular case of airside CIP transport between the aircraft and the terminal: the Holder can subcontract this operation to one of the existing handling companies in the related airports. However, the Holder shall make sure by his own means that the subcontracted company meet the requirements specified in the present document.

ARTICLE 9 : ACTIVITY REPORTING – FEES - INVOICING

The Holder shall declare to Commercial Department of ONDA the operations of each month **at latest the 10th of the next month.**

The monthly activity reporting shall specify for each month and each airport the number of CIP and the generated revenues following the template below:

	Revenues in Dirhams excluding VAT	Number of CIP
Meet and assist at the departure		
Meet and assist at the arrival		
Lounge access		
Full service (Meet and assist and lounge access)		

The Holder shall to pay to ONDA a rental fee regarding the occupation of the lounges and a variable commercial fee with an Annual Guaranteed Minimum (floor)

9.1 Rental fee

The **rental fee** shall be paid to ONDA depending on the surface of each lounge in m² multiplied by the annual occupation rate of each airport, as specified in **appendix 1**.

The rental fee shall be increased by 10% each three years.

The real surface of each lounge managed by the Holder shall be mentioned in the Acceptance Report of each airport, signed by both parties

The rental fee shall be invoiced each three months and be payable in advance. The invoicing shall start at the date mentioned in each Acceptance Report, signed by both parties.

For new lounges in the airports concerned by the extension program, the rental fee shall be invoiced starting from the commissioning of the new terminals.

9.2 Commercial fee:

The Holder shall pay to ONDA a variable commercial fee, according to the percentage mentioned in his financial offer. The commercial fee cannot be less than **20%** of all revenues generated by the Holder from CIP services.

For each year of the present convention, the variable commercial fee is floored by an Annual Guaranteed Minimum (AGM) for all the airports, according the financial offer of the Holder.

The AGM offered by the Holder cannot be inferior to the amounts specified in the chart below:

	2025	2026	2027	2028	2029	2030	2031	2032	2033	2034
AGM in Dirhams excluding VAT	12.300.000	12.930.000	13.600.000	14.300.000	15.050.000	15.810.000	16.620.000	17.500.000	18.400.000	19.305.000

If the commercial fee of a given year is below the AGM of the same year, the gap shall be invoiced to the Holder.

The commercial fee shall be invoiced monthly starting of the date of the beginning of operations of Fast Track, that shall be agreed and signed by both parties in an Acceptance Report.

Annual Guaranteed Minimum adjustment

The AGM of a given year can be adjusted after mutual agreement if the global traffic of the concerned year decreases by **15%** or more than the **previous year**. In any case, The AGM cannot be decreased by more than **15%**.

9.3. Common services and facilities charges

Common services charges: are related to common charges of the Terminal. Common services charges are equal to **7%** of the rental fee and invoiced each three months, payable in advance.

Facilities charges: (electricity, water) they shall be invoiced according to the actual consumption of each lounge whether through a sub electricity/ water meter or an estimation made by the technical services of ONDA.

Common services charges and facilities charges shall be invoiced separately.

9.4 Payment conditions

The Holder shall proceed to payment to all ONDA invoices within Forty-Five (45) days following date of invoice.

ARTICLE 10 : FEES NON-REDUCTION IN CASE OF FORTUITOUS EVENTS

Except from particular cases explicitly mentioned in the convention, fees amounts or rates cannot be reduced in case of fortuitous events or total or partial destruction of the allocated goods. The Holder cannot claim any reduction of the fees in case of its incapacity to use the allocated premises due to the occurrence of an ordinary or an extra ordinary fortuitous event.

ARTICLE 11 : LATE PAYMENT PENALTY

The late payment penalty is 6% of the due amounts for each delayed month in compliance with the dahir n°1-00-175 of 28th Moharrem 1421 (May 3rd 2000) promulgating the law 15-97 related to public debt recovery code

Operational reporting delay penalty is 1% for each month of the AGM of the ongoing year, or by default, of the last variable annual commercial fee invoiced.

ARTICLE 12 : BANK GUARANTEE

The Holder shall provide to ONDA a bank guarantee, no more than **forty-five (45) days** following the notification of the adjudication. The amount of the bank guarantee shall be **equivalent to 6 months of the mean of offered AGMs over the duration of the convention**. In case if the Holder cannot fulfil this obligation for any reason attributable to the Holder, ONDA shall cancel the tender and order the seize of the provisional bank guarantee

The Holder cannot start any operation unless he provides the bank guarantee.

The bank guarantee is not a payment in advance of fees in accordance of article 9 and it does not confer any rights contradictory with the legal regime of authorization.

The bank guarantee shall be held by ONDA during the duration of the convention. However, and according to the following articles, it shall be released to the Holder sixty (60) days after the end of Convention after deduction of all due amounts if any.

The bank guarantee shall be valid during all the period of the convention.

The bank guarantee shall be seized for the following reasons:

- Unpaid penalties by the Holder for non-execution of the Convention
- In case of Convention termination by the Holder. ONDA shall seize the bank guarantee and undertake any action to compensate the sustained prejudice due to the Holder failure to fulfil its obligations.
- Unpaid invoices according to the fixed deadlines specified in the present document

If the bank guarantee is seized partially by ONDA for unpaid penalties or invoices, the Holder shall provide an equivalent bank guarantee of the seized amount within twenty (20) days after the seizure. If the bank guarantee is not provided by the Holder after this period, ONDA has the right to terminate the Convention and seize all remaining amount of the bank guarantee.

ARTICLE 13 : QUALITY OF SERVICE

13.1 Customers surveys

The Holder shall implement a quality management system enhancing the quality of service. The system shall include information instant feedback solutions, quality of service control and reporting to ONDA services each three months. This statement shall also specify all highlights regarding lounges.

Moreover, ONDA is committed in a national program to improve quality of service within its airports to the same international standard of similar international airports in terms of capacity. This program consists in conducting customer surveys among all passengers including CIP. Therefore, the Holder shall facilitate the access to the lounge to the surveyors and shall be committed in any action to level up customers' satisfaction.

13.2 Claims and suggestions

The Holder shall provide an electronic email address to all CIP in order to enable them to make claims or suggestions with instant information of ONDA services.

In case of an electronic breakdown, the Holder shall provide customers a register to write down their claims and suggestions.

The Holder has the obligation to report to ONDA all verbal or written observations, claims, suggestions coming from the customers. The Holder shall provide all explanation, justification and suggestion regarding the quality of service. ONDA shall transmit to the Holder any claim received to be justified.

13.3 Audits et controls

ONDA services are allowed to conduct unannounced controls in order to check the level of quality of service

As part of airports certification, the services offered to CIP shall be controlled and audited by ONDA services and external organizations as well. The Holder shall be asked to provide any document, or to undertake any necessary action to make airports certification audits successful.

Generally, the Holder is called upon to collect all the required actions to improve the quality of service (following the audits, controls, surveys, claims and suggestions analysis) and to elaborate a Global Action Plan (GAP). The follow up of the GAP shall be done each six months by ONDA and the Holders teams.

ARTICLE 14 : PENALTIES FOR NOT ACHIEVING OBJECTIVES

In order to reach a high quality of service to CIP, ONDA shall carry out controls regarding meet and assist process and lounges management. The Holder has to comply with the objectives hereby defined. Not achieving these objectives shall lead to penalties:

Topics	Indicator	Objective	Penalty	Frequence	Calculation basis
Non-compliance noted	Number of non-compliance noted	0	5000 MAD for each non compliance	At each control	Non-compliance noted according to the check list in Appendix 2
Complaint rate for each lounge	Number of valid claims received / Number of CIP for each lounge	0.5%	1%	Each 3 months	Penalty calculated on the basis of the commercial fee of the previous quarter
Meet and assist	Number of missed operations (based upon customers written claims)	0	5000 DHS for each missed operation	Monthly	Penalty calculated on the basis of the commercial fee of the previous month

ARTICLE 15 : CIP SERVICES SALES CONDITIONS

The Holder is responsible for selling CIP services following the prices of similar services in similar international airports.

The Holder shall any customer an invoice or a ticket according to the current regulation related to the conditions of sales.

ONDA has the right to verify if the prices displayed on the invoices or tickets given to customers are in line with provided service.

The Holder shall comply with the existing legislation regarding payment methods. The Holder is obliged to inform customers about the conditions to accept checks and payment cards: displaying accepted cards logos, displaying the minimum or maximum thresholds to accept payment of any kind etc.

For ONDA special guests, the Holder shall give 1000 free vouchers annually that can be used in all airports of the Convention. Each voucher shall be used for a full service: meet and assist, Fast Track and lounge access.

ARTICLE 16 : BOOKKEEPING AND STATISTICS

The Holder shall have an accounting system in compliance with the law n° 9-88 related to the accounting obligations of the merchants promulgated by the dahir n° 1-92-138 of Joumada II 30th, 1413 (December 25th, 1992)

The Holder is committed towards ONDA, regardless its own obligations of his operations, to have an accountig system displaying distinctly, for each fiscal year, revenues of each service of the present convention.

During all the period of the convention, the Holder, or his representatives, shall provide accounting books to ONDA and any supporting document, whenever it is requested, in particular:

- 1) Accounting books related to the present authorization and accounting logs
- 2) Documents justifying revenues for each lounge
- 3) Financial statements (balance sheet, P&L, appendices etc.)
- 4) The inventories statement
- 5) Any analytical documents that may be considered to control the revenues

In general, the Holder and his representatives shall facilitate any verification or expertise ONDA may consider necessary in order to be assured of the accounting books accuracy and the compliance to the financial conditions of the present Convention. They are asked to provide any information according to the templates they shall be given.

If it is proven, during the Convention or later on, that the Holder concealed any part of the revenues or benefits used to calculate commercial fees, the Holder shall be liable to ONDA of the non-perceived fees and any caused damages. Furthermore, ONDA has the right to terminate the Convention and undertake any legal procedures against the Holder.

The Holder shall provide to ONDA at request, and following the template that he shall be given, any statistical statement related to the operations according to the present Convention.

ARTICLE 17 : STAFF OF THE HOLDER

The Holder shall give access only to the staff, strictly needed to operate services in the allocated areas.

The staff of the Holder shall be subject to identity controls and other verifications that can be required by ONDA agents, police, gendarmerie or customs services.

Therefore, the Holder shall provide ONDA the nominative list of his staff and all necessary information in order to produce access badges and authorization badges for vehicles as well.

It is not allowed to the staff of the Holder to change their clothes or store them in an area other than the lockers dedicated for this specific use. They are not allowed to eat in an area other than a specific room dedicated to this purpose.

17.1. GENERALITIES :

The Holder shall comply, at any time, with national labor legislation in terms of work, employment and social security and risk prevention.

ONDA is not concerned in any way by the relationship between the Holder and its employees nor the responsibilities that may occur from this relationship.

The CIP services specified in the present document cannot be affected in any way by issues related to the organization, or the internal functioning of the Holder.

The Holder shall comply with his commitments resulting from his offer regarding human resources.

17.2. STAFF REQUIRED CONDITIONS: In order to ensure a good image of the airports, the Holder shall undertake all required measures towards his staff enabling them to carry out their duty correctly. In particular, the Holder shall ensure the following points for its staff:

- a- Put on uniforms in perfect condition;
- b- Put on noticeably access badges provided by Airport Safety services and comply strictly with the authorizations and restrictions issued by the Safety and Security services of the airports.
- c- Do their duty under the strict compliance with all valid regulations within the airport. The Holder shall be the one and only responsible for any instruction breach resulting from the actions of its staff. The airport shall not be responsible for the Holder's staff instruction breach
- d- If any complaint is filed against Holder's staff for inappropriate behaviour, airport authorities shall forward these complaints to the Holder to take the necessary measures.
- e- Behave correctly and exemplarily:
 - Be polite, courteous and humble in his/her relationship with passengers, the public authorities and ONDA Staff
 - Not to smoke in front of passengers and in the restricted areas nor ask for tips.

The Holder has the obligation regarding his staff:

- a- Carry out operations with appropriate staff for an optimal performance regarding the required quality of service, according to the commitments in the Holder's offer
- b- Accept, all along the duration of the Convention, all responsibilities that may result from any relationship with third parties in order to develop required services. ONDA shall not subrogate in any third-party relationship.

17.3. STAFF TRAINING

The Holder shall be responsible for ensuring appropriate training to its staff regarding the services mentioned in the Convention. In particular, the topics of training to be carried out by the Holder are as follows:

- Knowledge of the airport environment,
- Safety and security,
- Labor risks,
- Handling persons with reduced mobility and persons with specific needs.

Training concerns new recruits, before they start their duty, and permanent staff already on duty as well. At the beginning of the convention and once a year, the Holder shall provide ONDA the Staff Training Program, as detailed as possible. This program shall meet the minimum commitments of the Holder included in his initial offer.

Furthermore, any required training session asked by airport authorities, shall be provided to Holder's staff. Therefore, the Holder ensures that its staff shall attend and participate in these training sessions.

17.4 STAFF RESUMPTION FROM THE PREVIOUS SERVICE PROVIDER:

When recruiting, the Holder shall do his best efforts to prioritize and resume the staff currently employed by the current CIP service provider in all airports aimed by the present call for tender.

17.5 STRIKE:

The Holder, with the approval of the airport authorities, shall set up a minimum service to ensure operations if its staff goes on strike. The Holder shall to inform the airport authorities about the evolution of the situation during strikes according to a frequency and conditions to be given by these authorities.

In all cases, during strikes, the Holder shall comply with any of its safety and security obligations and shall be able to face any contingency event.

ARTICLE 18 : USE OF THE AUTHORIZATION – BAN OF CHANGING THE INITIAL USE

The convention grants the Holder the right to occupy premises for the purposes previously stated in the Requirement Specifications Document.

The Holder shall use the premises, spaces and areas only for the purposes of the present convention. Any change of the initial purpose is forbidden, unless a formal written approval from ONDA.

Thus, the Holder is not allowed to use the spaces granted in an abnormal way, not matching with the purpose of the present convention or with the allocation initially planned for during their construction or installation.

Besides, ONDA has the right to oppose to any use of the granted premises, spaces and areas that can be likely considered as source of accidents or damage of any kind, whether to ONDA properties, or to the properties of other occupants, or to airport users or third parties, or that can be the cause of insalubrity risks or discomfort to airport users or to the good operations of the equipments.

If ONDA sends to the Holder a formal notice, with a specific deadline, to act in a way to end an abnormal use, and the Holder ignores the notice, ONDA has the right to intervene and take all necessary measures to end the abnormal use, even by taking back the possession, partially or totally, of the premises, spaces and areas initially granted to the Holder or by changing or removing, or repairing the cause of the abnormal use at the Holder's expenses and risks.

The Holder is not authorized to transfer the rights of the Convention to any third party without ONDA's prior approval. Otherwise, the convention is terminated and the transferred rights are annulled. The Holder shall be charged back any expense spent by ONDA as a result of the intervention.

ARTICLE 19 : CONTROL – INSPECTION AND SURVEILLANCE

The Holder shall consent and facilitate any inspection carried out by ONDA's representatives to make sure the general and specific conditions of the convention are fulfilled.

The Holder shall consent and facilitate the surveillance of customs services, police, airports' safety agents of ONDA or public authorities.

The Holder cannot ask these agents for any special or extraordinary service. The Holder is nonetheless required to ensure direct surveillance of the goods and premises privately allocated.

For that purpose, the Holder can, with General Manager of ONDA's approval or his representative's, in specific terms and conditions the General Manager shall determine, appoint security agents. ONDA has to approve these agents 'profile, and has the right to ask for their dismissal, if needed, without providing any reason to the Holder.

ONDA has the right to carry out controls and permanently survey the premises granted to the Holder. The premises must be maintained in a perfect condition of quality and well-functioning for the passengers' and customers' satisfaction.

ONDA's guarding responsibility is not incurred towards the Holder, or its staff or customers or any third party in business relationship with the Holder.

ARTICLE 20 : INDIVIDUAL AUTHORIZATION/ RIGHT TO TRANSFER

The Holder shall occupy by himself or use directly for his own benefit, with any discontinuity, the premises made available for operations.

The Hold is not authorized to transfer the rights of the Convention to any third party without ONDA's prior approval, whether for free or against payment.

ARTICLE 21 : BAN OF DISRUPTION

The Holder shall not to act in any way to disturb or obstruct the smooth operations in the airports or the public missions of ONDA

The Holder shall, without any failure, conduct services within the granted premises without using the public spaces dedicated to passengers, for promotion or any kind of illicit solicitation

In case of infringement, ONDA shall take the following measures:

- ✓ At the first infringement, a warning message shall be sent
- ✓ In the event of a renewed breach, the Convention shall be terminated without notice or compensation

ARTICLE 22 : CLEANING AND MAINTENANCE OF ALLOCATED PREMISES

The Holder shall be responsible for the good preservation, maintenance in a good condition the granted premises and areas.

The maintenance shall be carried out in a way the goods shall, at any time, be functional and in good looks, especially those installed in the public areas of the terminals

Thus, ONDA shall demand to the Holder by issuing general or specific instructions to comply with some requirements in terms of the frequency of the maintenance operations.

The needed cleaning and maintenance works shall be conducted in a way they shall not alter the nature and the quality of the elements, materials, accessories of the granted premises, spaces and areas. Otherwise, ONDA shall demand repairs or replacements of any required element.

Besides, these frequent maintenance operations, considered as rental operations, the Holder shall ensure heavy repairs such as replacement of obsolete equipments or installation, roof repair, and rehabilitation of degraded areas.

The goods brought by the Holder or those replaced following rehabilitation shall be owned by ONDA. They shall be identical or equivalent to those initially placed. Any replacement shall be priorly approved by ONDA and the works conducted approved by the latter.

In case of any delay or negligence in the obligations above, ONDA shall address a formal notice to the Holder. If any action is noticed, ONDA shall carry out any necessary action or work to maintain or replace the degraded goods under the Holder's responsibility at the risk and expense of the Holder.

The Holder shall be responsible for the proper maintenance of the premises and waste and rubble removal. The Holder shall be responsible for the cleaning following ONDA general or specific instructions as per required minimum frequencies, schedules, cleaning products and materials to be used, waste and rubble removal conditions.

At ONDA request, the Holder shall justify that the contracts signed with cleaning companies, if need be, contain the Holder's obligations. In all cases, the Holder remains the only responsible towards ONDA for any infringement of any of its subcontractors.

ONDA has the right to verify clean conditions of the granted premises or complementary elements installed by the Holder. In case of failure, ONDA has the right to undertake any necessary measure, after having sent a formal notice to the Holder. All expenses shall be charged back to the Holder.

ARTICLE 23 : TOTAL OR PARTIAL RESTITUTION OF ALLOCATED PREMISES FOR PUBLIC INTEREST

For the public service interest, ONDA has the right to conduct works in any area in the airport if need be.

ONDA has the right to take back the granted premises, spaces and areas granted to the Holder after notice period of two months sent by a registered letter, except of cases of urgency. The motivation of taking back the granted spaces and areas can be necessary exceptional works in terms of nature or duration or for public service interest.

In such cases, the Holder cannot oppose the conduction of these works nor the partial or total restitution of the granted premises, spaces or areas.

The Holder cannot claim any compensation for losses, damages, disruption, temporary or definitive eviction. However, the Holder has the right to ask to terminate the Convention. The Holder shall then be reimbursed any payment made in advance.

If the Holder asks to continue the Convention, whether to keep on the activity within premises, spaces and areas that are not affected partially or totally by works, or to transfer activity to other available spaces, the fees shall be applicable from the effective date of the restitution made to ONDA.

Any request to terminate the Convention, or to ask for fee reduction shall be address to the General Manager of ONDA at last two months after the end the works or after the notification mentioned in the second paragraph of the present article.

ARTICLE 24 : MODIFICATIONS AND LAYOUTS MADE BY THE HOLDER

The Holder cannot undertake any action aiming the improvement, the modification, the completion of the allocated premises, spaces or areas made available, including installations, fixed equipments, materials requiring a special supply from distribution networks from airports, unless it is formally approved by ONDA written authorization.

Following the cases, the Holder shall submit to ONDA all the plans needed to conduct the works, installations, equipments and materials settlements. The plans shall include layouts, designs, explanatory memorandum, detailed quotation enabling to understand the works or modifications to be conducted and all necessary conditions to install equipments and materials.

ONDA has the right to approve the project, or to reject it, or to prescribe any modification considered suitable, in particular to ensure the good preservation and the optimal use of the works and premises within the airports. If no notification received by the Holder within a period of one month, the project shall be considered approved.

Works conduction and equipments or materials settlements shall be conducted according to the approved plans, including ONDA prescriptions. The materials and furniture used shall be of a high quality, installed according the rules of the art, and under ONDA technicians' supervision.

ONDA has the right to impose time frames, prescriptions, and some specific conditions during the works, working periods and hours, specific provisions... aiming to save the good use and the proper functioning of the installations.

The Holder may possibly be requested to accept that some works impacting the general functioning of airports general facilities and equipment to be conducted at the Holder's expense by ONDA or by a company approved by ONDA. The list of approved companies to conduct works shall be communicated to the Holder.

All costs related to achieved works, installations, equipments and materials conducted by the Holder, even if they contribute to improve the allocated premises, spaces and areas or the services, shall be exclusively at the Holder's expense, all accessory costs included, except priorly formal approval by ONDA.

If achieved works, installations, equipments and materials have been conducted regardless ONDA prescriptions, ONDA has the right to demand the restitution of allocated goods, spaces and areas granted by the Convention, or to demand the removal of the settled installations, equipments and materials, if needed. The request for removal shall be sent by formal

notice. If any action is undertaken by the Holder, ONDA has the right to carry out any action to remove the inappropriate items at the Holder's risks and expense, or to terminate the Convention.

ARTICLE 25 : TAXES

Except express prior written consent, the Holder shall pay, in addition of the rental, service, facilities, and commercial fees, all taxes, including land tax and assimilated taxes of the allocated premises, spaces and areas that are subjected to or shall be subjected to, in the future, or to be subjected due to achieved constructions, works and installations.

The Holder shall pay, during all the duration of the convention, all the taxes of any kind the Holder is liable for, regarding its activity, in particular, all movable property taxes, « patente », licences, customs duties, all taxes or contributions, all taxes raising from current and future tax legislation to be paid to the Public Treasury or Local Communities. ONDA is not responsible for any undeclared or unpaid tax by the Holder.

ARTICLE 26 : LIABILITIES - INSURANCE

The Holder shall be the only liable for all consequences and disadvantages which result for ONDA or third parties during the running of its activity.

The Holder's liabilities, in case of contractual failure or negligent conduct, include damages and loss of earnings.

ONDA shall be exonerated from all liability for consequences and disadvantages triggered to third parties resulting from the Holder's provided authorized services

Without prejudice to above, the Holder must provide, before the start of operations and all along the duration of the Convention, valid insurance certificates covering risks in the airports where he operates. The required insurance policies are:

a- Professional Liability Civil Aviation:

An insurance police that covers the liabilities professional risks of the Holder towards third parties for damages caused to aircrafts, passengers, luggage, and ONDA airports installations that may occur during, and due to, the Convention operations. ONDA shall appear as additional insured party and, for any reason, shall be considered as third party.

Similarly, this insurance police shall cover the professional liability resulting from the use and the circulation of vehicles and/or transport equipments needed to operations within restricted areas.

b- Professional Liability Manager:

An insurance police that covers the liabilities and/or injuries caused to the Holder's personnel that may occur during, and due to, the Convention operations.

c- Professional Liability Rental:

An insurance policy that covers the allocated premises, spaces and areas made available by ONDA and used directly by the Holder to run its activity. This insurance covers the liability of the Holder towards ONDA. The liabilities to be covered up are the damages caused by fire and/or explosion and water damages.

The insurance policies a, b and c shall be subscribed by the Holder. They shall mention a sufficient minimal threshold of compensation for each accident accordingly to international best practices of the industry.

ARTICLE 27 : OTHER BANNED ACTIONS

It is strictly banned, unless ONDA special approval, to install fences, to design passages and access roads other than those that exist, to obstruct, in any way, free circulation of agents, workers, ONDA's vehicles, or its subcontractors' or other authorized operators.

ARTICLE 28 : REVOCATION CASES FOR SANCTION

The convention can be revoked or suspended for the following reasons:

- 1) Failure of the Holder to comply with one of the general or particular conditions of the Convention
- 2) Unpaid fees, service, facilities, invoices and unpaid taxes

Revocation or temporary suspension shall happen after a formal notice sent by a registered letter and no action undertaken by the Holder in a specific deadline that cannot be less than fifteen days, except in case of emergency. The

revocation shall be decided by the General Manager of ONDA, with no other necessary action to be undertaken in justice courts. The revocation date is the date when the Holder is notified by this decision.

Revocation decision shall mention the deadline given to the Holder to evacuate the premises.

In case of revocation, the Holder cannot claim any compensation, and has not the right to ask for reimbursement of payments in advance. The Holder shall be liable towards ONDA for all unpaid amounts, if any.

Besides the cases mentioned in the present Convention, the authorization can be revoked unilaterally by the General Manager of ONDA:

- 1) In case of inappropriate conditions of the granted premises, spaces and areas, undone actions in a period not less than fifteen days raised from customers' recognized claims and notified by ONDA to the Holder
- 2) In case of concealing revenues needed to calculate the commercial fee.

In the latter case, the revocation can be decided with no prior notice.

ARTICLE 29 : TERMINATION

The Convention can be terminated in the following cases:

- The extinction of the legal person of the Holder's company
- By ONDA decision if the main shareholder of the Holder has no more the majority of the Holder or if he loses its control
- The Holder is declared in bankruptcy or suspension of payments
- Unpaid fees, service, facilities invoices or taxes
- Mutual agreement between both parties
- Service interruption due to the Holder's decision, except force majeure
- The Holder does not start operations with as specified in article 5
- The Holder does not comply with the obligations of the Requirements Specification Document or the Commercial Offer
- Cases leading to revocation clearly mentioned in the present Requirements Specification Document
- The Holder withdraws from one or several airports of the Requirements Specification Document
- The Holder does not provide bank guarantee in the specified deadline stipulated in article 12.
- The Holder starts a legal proceeding against ONDA

Termination shall happen after a formal notice sent by a registered letter and no action undertaken by the Holder in a specific deadline that cannot be less than fifteen days, except in case of emergency. The termination shall be decided by the General Manager of ONDA, with no other necessary action to be undertaken in justice courts. The revocation date is the date when the Holder is notified by this decision.

Termination decision shall mention the deadline given to the Holder to evacuate the premises.

In case of termination, the Holder cannot claim any compensation, and has not the right to ask for reimbursement of payments in advance. The Holder shall be liable towards ONDA for all unpaid amounts.

For any valid reason, the Holder can request the termination of the Convention by sending a registered letter to General Manager of ONDA **at least six months** prior to the date of termination. Termination shall then be decided by ONDA's General Manager decision at his/her own discretion.

In that case, termination cannot be effective until the date of evacuation of the premises. Fees payments in advance are not reimbursed. The Holder shall be liable towards ONDA for all unpaid amounts, and cannot ask for any reimbursement.

The convention can be terminated after a mutual agreement according terms and conditions related to total or partial restitution of premises for public interest

The Holder shall return to ONDA all installations, equipments, furniture in case of termination whatever the reason of termination shall be.

In case of Termination due to the Holder's failure, the bank guarantee shall be lost for the benefit of ONDA. Moreover, the Holder shall pay the AGM of the following year, and may be asked to pay compensation to ONDA for caused damages

ARTICLE 30 : EVACUATION OF THE PREMICES AT THE END OF THE LAND USE

At the end of the land use, whether at the end of the convention or in case of revocation or termination, the Holder shall evacuate the premises and, at ONDA request, return the premises according to their initial condition.

Penalty for evacuation delay shall be paid by the Holder to ONDA of MAD 5 000 (Five thousand dirhams) per day of delay and per premise. ONDA has the right to proceed to legal proceeding to force the evacuation.

ONDA has the right to undertake any action of demolition, construction, installations to keep the premises in good condition or to transform them into their initial condition at the Holder's risks and expense. Construction, fixed installations achieved by the Holder during the convention shall remain property and ownership of ONDA without any compensation to the Holder.

ARTICLE 31 : SECURITY CALLER

The Holder shall ask for access badges for its staff and for its vehicles. For that purpose, the Holder shall designate a « Security Caller ».

The Security Caller, after a security training delivered by ONDA, shall be in charge of the following missions:

- Validate and sign access request
- If needed, suggest internal sanctions for misbehaviour
- Update security, quality and training programs
- Write security requirements in job descriptions
- Preserve training records

ARTICLE 32 : COMPLIANCE TO LEGISLATION, RULES, POLICE INSTRUCTIONS, ETC.

The Holder shall comply with the following:

- Laws and general legislation applicable in Morocco, especially those related to its activity.
- Laws and general legislation related to border control.
- Laws and general legislation related to airports operation and any general or particular piece of instruction, permanent or temporary, that shall come into force from competent authorities.

At any case, the Holder shall claim to ONDA a compensation or fee reduction justified by any obstacle or difficulty related to legislation or instructions mentioned above.

The Holder shall hold all administrative authorizations, and proceed by its own means to any administrative formalities. The Holder shall comply with all obligations related to its activity for all aspects: professional, commercial, industrial... ONDA is not responsible for any negligence of the Holder in its legislation or administrative failure.

ARTICLE 33 : NATURE OF THE REQUIREMENTS SPECIFICATION DOCUMENT CLAUSES

All the clauses of the Requirements Specification Document clauses are mandatory and cannot be, for any reason, avoided or considered revocable.

The signing of the Convention by the Holder shall be considered as a recognition of its irrevocable acknowledgment of ONDA rights and of the Holder's obligations stipulated in all the clauses.

ARTICLE 34 : GENERAL LEGAL STATUS OF THE CONVENTION

34.1 GENERAL LEGISLATION

The authorization shall enter into effect under the Holder's risks and shall be ruled by the Convention signed by ONDA and the Holder. The Convention shall include the present Requirements Specification Document, the Holder's bid accepted as per the international call for tenders.

The convention signed by ONDA and the Holder is ruled by:

- Law n° 25-79 related to the creation of Offices des Aéroports de Casablanca applicable by ONDA through Dahir n° 1-89-237
- Decree n° 2-89-480 application of the law n° 25-79,
- Decree n° 2-05-1399 related to the conditions of handling licences in airports,
- Dahir n° 1-06-15 of Moharrem 15th, 1427 promulgating the law n° 54-05 related to the delegated management of public services (B.O. n° 5404 of March 16th, 2006),
- Dahir 1918 : ruling the temporary occupation of Public Domain of the State.
- Dahir n° 1-00-175 of Moharrem 28th, 1421 (May 3rd, 2000) promulgating the law n° 15-97 related to the recovery code of public debts.

34.2 TRADING COMPANY IN MOROCCO:

The Holder, whether a Moroccan or foreign company, whether alone or in a consortium, shall establish a company under the Moroccan commercial legislation to rule operations stipulated in the present convention. The Holder shall manage, control and own the majority of this company. The Convention shall be signed by ONDA and the Moroccan company.

34.3 LABOR LEGISLATION AND WORK RISKS PREVENTION:

The Holder shall comply with Moroccan Labor Legislation and all standards regarding work risks prevention, for its own employees and for its subcontractors', namely Ministerial Ruling of the Minister of Employment and Professional Training n° 93-08 of Joumada I, 6th 1429 related to conditions of application of articles 281 and 291 of the Labor Legislation (B.O. n° 5680 of Novembre 6th, 2008).

ONDA is not responsible for work conditions of the employees of the Holder and its subcontractors'. ONDA shall not be liable to them.

The Holder shall comply with, along with its subcontractors, the following obligations:

- a- Provide the Internal Work Rules Notice of the company at the start of operations
- b- Comply with Labor Legislation and the Internal Work Rules Notice.
- c- Undertake all necessary actions to guarantee an appropriate security regarding any kind of risks for personnel and goods, belonging to ONDA or any third party, and working in the allocated premises, spaces and areas.
- d- Undertake all necessary actions to control or eliminate any inherent or implied hazard resulting from the activity of the Holder or from his subcontractors' working in the same spaces.
- e- Inform properly its staff about professional hazards resulting from its activity.

In general, the Holder shall:

- a- Inform ONDA and all companies that may be concerned about the initial or occurred specific risks its activity may cause, in particular, the risks that may be worsen or modified by circumstances resulting from the professional activities of the Holder and other companies' and provide ONDA and these companies the necessary measures to be taken in order to avoid them or mitigate them.
- b- Communicate to ONDA any occurring incident or accident or any hazardous situation that may deteriorate security conditions towards third parties. This communication shall be immediate in case of imminent serious hazard and in case of emergency situation that may impact health and security of third-party companies working in the airports
- c- Comply with all instructions from ONDA in terms of coordination activities whenever it is concerned.
- d- Provide all information that may be considered relevant to prevent and protect from labor risks.
- e- Assign necessary risk prevention resources inside workplace, with any organization modality of these resources. In general, whenever these risks may be worsened or modified due to process development or triggered by concomitance of different operations occurring sequentially or simultaneously that oblige the strict control of work methods when processes or operations are considered hazardous or containing special risks.
- f- Attend any meeting or other event related to labor risks prevention whenever the Holder is invited to.

34.4 CONTRIBUTION AND FEES PAYMENT

The Holder shall pay all applicable fees related to his activity, local or national: corporate taxes, VAT, customs' duties on imported equipment, withholding taxes....

The Holder shall pay to ONDA rental fees for the occupancy of airport public domain and commercial fees for its activity as well all along the duration of the convention, in respect with article 9 of the present Requirements Specification Document.

If the Holder does not pay these fees, penalties shall be applied in respect with article 11 of the present Requirements Specification Document.

Rental, common services, facilities and commercial fees are subject to VAT of 20%

34.5 STATUS CHANGE:

The Holder shall inform ONDA and airports' authorities immediately of any change related to any of the elements taken into consideration during the selection process of the present international call for tenders.

34.6 STANDARDS CHANGE:

All along the duration of the convention, the Holder shall comply with any change in norms or standards that may occur related to the use of airport public domain, environment issues, safety and security patterns, or any other topic that may impact the provided services. The Holder shall comply with norms and standards change as soon as it is informed by ONDA, unless a future date is considered in the new norm or standard for compliance. The new conditions shall be part of the present Requirements Specification Document without explicitly changing this latter. Similarly, the Holder shall comply with any legislation change impacting the present Requirements Specification Document as soon as it comes into force.

34.7 DATA PROCESSING:

In case of processing personal data, the Holder shall comply with the provisions of Dahir n° 1-09-15 of February 18th, 2009 – Safar 22nd, 1430 promulgating the law n° 09-08 related to the protection of natural persons regarding personal data processing

ARTICLE 35 : LANGUAGE OF THE BID

The bid of the present international call for tenders and all correspondence and any document related to the offer between the Holder and ONDA shall be written in Arabic, French, or English, except for the bank guarantee that shall be provided in French by a Moroccan bank.

The Convention shall be signed in French and English versions. In case of discrepancies, the French version shall prevail.

ARTICLE 36 : DISPUTES

Any dispute raising from the Convention shall be subject to jurisdiction of the Court of Casablanca

ARTICLE 37 : COSTS

The Holder shall process to any legal, administrative, fiscal formalities related to the Convention. The Holder shall pay all taxes related to the Convention registration, namely stamp and registration duties according to the current legislation in force.

THE HOLDER

DATE

(Read and approved)

APPENDIX 1: Annual Land rental rates of ONDA CIP lounges

Airports		Rates (MAD/HT)
Casablanca Mohammed V	T1	2700
	T2	2529,45
Marrakech Ménara		3045
Rabat Salé New Terminal		3753,84
Tangiers Ibn Batoutta		2525,99
Agadir Al Massira		2167,85
Fez Saiss		2645,5
Oujda Angads		2335,9
Laayoune Hassan 1er		1102,5
Dakhla		1129,02

NB :

- Annual rates are given for information purposes in Moroccan Dirhams per m². They shall be increased by 10% each three (3) years.
- Rental fees shall be calculated on the basis of current land rent rates of each airport the day of premises allocation.

APPENDIX 2: Checklist of CIP Lounges Control – Airport_____

Topic	Obligations	Compliance Yes/ No	Due date of compliance action	Observations
Signs, Circuits Departure – arrival & Lounges prem- ises	Signs at the entry of terminal			
	Signs in the terminal – customs free area			
	Signs Fast Track at the departure			
	Signs in the terminal – bonded customs area			
	Signs – within lounges (reception, game spaces, smoking area, WC.)			
	Signs at the arrival			
	Signs at the Fast-track arrival *			
CIP meet	Availability of meet desks - Departure area; - Arrival area.			
	Meet staff at the meet desks: - Availability; - Quality of CIP service; - Meet tools (tablets or other tools) - 3 spoken languages: Arabic, French and English - Dress; - Badge; - General look; - Behaviour.			
CIP services « Departure & Arrival »	Qualified meet staff in a sufficient number in lounges			
	CIP assistance staff to carry luggage at the departure and luggage delivery at the arrival			
	CIP assistance staff at the check in			
	CIP assistance staff at the Fast Track at departure and arrival: no intervention during border control pro- cedures			
	Availability of adapted vehicles with access badges, flashing lights, to transport CIP airside			
	Vehicle condition			
	Quality of catering			
	Catering hygiene and expiry tracking			
	Sufficient national and international newspapers and magazines			
Walk in	Compliance to the procedure réf OPS/MAAS/01			
* In the airports where Fast Track is not available.				
Lounges condi- tion	Opening and closing times			
	General condition of the lounge			
	Lighting			
	Air conditioning			
	Cleaning			
	Cleanliness of WC			
	Quality of furniture			
	IT equipment: PCs, Satellite TVs			
	Operational WIFI			
	Electronic payment solution: available and operational			
	Access E-gates for passengers			
	Surveillance cameras connected			
	Flight Information Display screens			
Environment	Compliance with environmental requirements			
Safety and Se- curity Standards	Compliance with safety and security airport standards			
Documentation	Email address and register (available and clearly displayed) within each lounge, dedicated to collect claims and suggestions			
	Operation Manual acknowledged by the local manag- er			
	Claims and suggestions processing and action plans			

	transmission to ONDA			
	Reporting monthly transmission			
Collaboration Holder/ONDA	Level of collaboration between the Holder and ONDA teams			
Works and action plans	Achievement of action plans agreed between the Holder and ONDA			
	Compliance with the deadlines to achieve works			
Other				

This check list can evolve following the development of airports after mutual coordination with the Holder